

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

SUMMONS

-----X
AGUSTIN FLORES,

Index No.:

Plaintiff,

The basis of venue is:

-against-

Location of the incident

Plaintiff designates New York
County as the place of trial.THE CITY OF NEW YORK, POLICE OFFICER
THOMAS O'CONNOR, Shield No. 28373,
DETECTIVE RUDY LAHENS, LIEUTENANT
HARRIS, and POLICE OFFICERS JOHN DOES # 1-4
(names and numbers of whom are unknown at present),
and other unidentified members of the New York City
Police Department,Defendants.
-----X**To the above named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
February 6, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
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New York, New York 10007
(212) 577-2690

To: CITY OF NEW YORK CORPORATION COUNSEL, 100 Church Street New
York, New York 10007
POLICE OFFICER THOMAS O'CONNOR, Shield No. 28373, Narcotics Boro
Manhattan South, 1 Police Plaza, Room 1100, NY, NY
DETECTIVE RUDY LAHENS, Narcotics Boro Manhattan South, 1 Police Plaza,
Room 1100, NY, NY
LIEUTENANT HARRIS, Narcotics Boro Manhattan South, 1 Police Plaza, Room
1100, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
AGUSTIN FLORES,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

-against-

THE CITY OF NEW YORK, POLICE OFFICER
THOMAS O'CONNOR, Shield No. 28373,
DETECTIVE RUDY LAHENS, LIEUTENANT
HARRIS, and POLICE OFFICERS JOHN DOES # 1-4
(names and numbers of whom are unknown at present),
and other unidentified members of the New York City
Police Department,

Defendants.
-----X

Plaintiff, AGUSTIN FLORES, by his attorneys, JACOBS & HAZAN, LLP, as
and for his Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On July 25, 2013, at approximately 5:30 pm, while lawfully walking in the vicinity of East 3rd Street and Avenue D, New York, New York, plaintiff was unlawfully stopped, questioned, frisked, searched, strip searched, falsely arrested, falsely imprisoned, subjected to excessive force, an assault and battery by the defendant New York City Police Officers. Thereafter, plaintiff was maliciously prosecuted, denied his right to a fair trial and deprived of his due process rights by the defendant police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, denied a right to a fair trial, denied his right to due process, subjected to excessive force, assaulted, and battered plaintiff in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff AGUSTIN FLORES is a citizen of the United States and a resident of the State of New York.

3. POLICE OFFICER THOMAS O'CONNOR, Shield No. 28373, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. POLICE OFFICER THOMAS O'CONNOR, Shield No. 28373, is and was at all times relevant herein assigned to Narcotics Boro Manhattan South.

5. POLICE OFFICER THOMAS O'CONNOR, Shield No. 28373, is being sued in his individual capacity and official capacity.

6. DETECTIVE RUDY LAHENS, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE RUDY LAHENS, is and was at all times relevant herein assigned to Narcotics Boro Manhattan South.

8. DETECTIVE RUDY LAHENS, is being sued in his individual capacity and official capacity.

9. LIEUTENANT HARRIS, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

10. LIEUTENANT HARRIS is and was at all times relevant herein assigned to Narcotics Boro Manhattan South.

11. LIEUTENANT HARRIS is being sued in his individual capacity and official capacity.

12. Police Officers John Does # 1-4, are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

13. Police Officers John Does # 1-4 are being sued in their individual capacities and official capacities.

14. At all times relevant herein, the individually named police officer defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New

York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

15. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

16. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

17. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. On July 25, 2013, at approximately 5:30 p.m., plaintiff was lawfully walking in the vicinity of East 3rd Street and Avenue D, New York, New York.

21. Plaintiff had worked on July 25, 2013 and was walking home after he had stopped to run a few errands.

22. As plaintiff was walking home, he saw an acquaintance he knew from his neighborhood and stopped to say hello to him.

23. After speaking to the acquaintance, plaintiff began to walk towards his apartment building when, without provocation or legal justification, he was unlawfully tackled from behind by the individually named defendant police officers.

24. At no point in time had plaintiff engaged in any unlawful conduct.

25. At no time did the defendant police officers have probable cause or any objective reason to believe plaintiff committed a crime

26. Nevertheless, the individually defendant police officers tackled plaintiff to the ground without reasonable suspicion or probable cause.

27. As a result of being tackled to the ground, plaintiff sustained serious physical injuries to his body, including but not limited to his right shoulder.

28. The defendant police officers then unlawfully frisked plaintiff over his clothing, touching all areas of his body, without reasonable suspicion or probable cause.

29. The defendant police officers then searched inside of plaintiff's pockets, removing all of the contents therein, without probable cause or legal justification.

30. At no time did the defendant police officers find any drugs, weapons, or illegal contraband on plaintiff or in his possession, custody, or control.

31. At no time did the defendant police officers have probable cause or any objective reason to believe plaintiff committed a crime.

32. No reasonable police officer would have believed that they had probable cause to arrest plaintiff.

33. Further, at no time did plaintiff resist arrest in any way.

34. Despite knowing plaintiff had not committed any crime, the defendant police officers nevertheless handcuffed plaintiff excessively tightly and arrested plaintiff without probable cause or legal justification.

35. The defendant police officers then placed plaintiff in the back of the NYPD van and unlawfully transported plaintiff to the 9th precinct.

36. Upon arrival at the 9th precinct, plaintiff was fingerprinted, photographed and placed into a holding cell.

37. Thereafter, the defendant police officers unlawfully conducted a strip search of plaintiff without reasonable suspicion or probable cause.

38. Specifically, plaintiff was forced to take off all of his clothes and shake each piece of clothing out.

39. Plaintiff was then ordered to turn around, and with his back facing the defendant police officers, plaintiff was forced to bend over and spread his buttocks.

40. At no time did the defendant police officers recover any drugs, contraband or other illegal paraphernalia from plaintiff.

41. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants maliciously initiated a prosecution against plaintiff without probable cause, on July 26, 2013 when plaintiff was arraigned in Manhattan Criminal Court and was falsely charged with a crime.

42. After several hours in custody at the 9th precinct, plaintiff was transported to Manhattan Central Booking.

43. On July 26, 2013, after approximately 24 hours in custody, plaintiff was arraigned in Manhattan Criminal Court and was released on his own recognizance.

44. Thereafter, plaintiff was forced to appear in Court on 3 occasions before all charges against plaintiff were dismissed on November 8, 2013.

45. As a result of the unlawful arrest, plaintiff was forced to miss approximately five (5) days of work.

46. Certain individually named police officer defendants observed the violation of plaintiff's rights under New York State Law and did nothing to prevent the unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search, malicious prosecution, assault, and battery of plaintiff.

47. The unlawful stop, question, frisk, search, false arrest, false imprisonment, unlawful strip search, malicious prosecution, assault, and battery of plaintiff by the individually named police officer defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

48. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 47 with the same force and effect as if more fully set forth at length herein.

49. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, denied a right to a fair trial, and maliciously prosecuted plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment and in violation of his right to due process under the Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

50. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York and under the Fourth Amendment to the United States Constitution. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

Unlawful Stop

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The conduct of defendants in stopping and frisking plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

56. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

57. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries.

58. Defendants collectively and individually, while acting under color of state law were directly and actively involved in violating plaintiff's constitutional and statutory rights under the New York State and Federal law.

59. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

60. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FOURTH CAUSE OF ACTION

Unlawful Search

61. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 60 with the same force and effect as if more fully set forth at length herein.

62. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

63. Defendants lacked probable cause to search plaintiff.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

65. As a result of the aforementioned conduct of defendants, plaintiff Kenneth Jackson sustained injuries.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Malicious Prosecution

68. Plaintiffs repeat and reallege paragraphs 1 through 67 as if fully set forth herein.

69. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

70. Defendants commenced and continued a criminal proceeding against plaintiff.

71. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

72. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

73. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

74. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

75. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Failure to Intervene

76. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 75 with the same force and effect as if more fully set forth at length herein.

77. The individually named police officer defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

78. The individually named police officer defendants failed to intervene to prevent the unlawful conduct described herein.

79. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

80. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

81. The City, as the employer of defendants, is responsible for his wrongdoing under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training, and Supervision

82. Plaintiff repeats and realleges paragraphs 1 through 81 as if fully set forth herein.

83. At all relevant times hereto, defendants THE CITY OF NEW YORK had the duty to competently and sufficiently hire, train and retain within the Police Academy and at the Command, precinct and Patrol levels, the defendant Officers in the protection of the rights of the plaintiff under the laws of the State of New York.

84. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants individually named defendants, individuals who were unfit for the performance of police duties on July 25, 2013, at the aforementioned location.

EIGHTH CAUSE OF ACTION

Common Law Negligence

85. Plaintiff repeats and realleges paragraphs 1 through 84 as if fully set forth herein.

86. Defendants owed a duty of care to plaintiff.

87. Defendants breached that duty of care by falsely arresting, falsely imprisoning, unlawfully strip searching, assaulting, and maliciously prosecuting plaintiff.

88. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

89. All of the foregoing occurred without any fault or provocation by plaintiff.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION

Negligence Infliction of Emotion Distress

91. Plaintiff repeats and realleges paragraphs 1 through 90 as if fully set forth herein.

92. By the actions described herein, the individually named defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff Agustin Flores. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

93. As a result of the foregoing, plaintiff was deprived of liberty, was subjected to the use of excessive force, and sustained great emotional injuries.

94. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

TENTH CAUSE OF ACTION

Assault

95. Plaintiff repeats and realleges paragraphs 1 through 94 as if fully set forth herein.

96. Defendants, their agents, servants and employees, acting within the scope of her employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the plaintiff, and that such acts caused apprehension of such contact in the plaintiff.

97. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

98. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

Battery

99. Plaintiff repeats and realleges paragraphs 1 through 98 as if fully set forth herein.

100. Defendants, their agents, servants and employees, acting within the scope of her employment, intentionally, willfully and maliciously battered plaintiff, when they, in a hostile and/or offensive manner struck plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the plaintiff and caused such battery.

101. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York and the United States Constitution.

102. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

TWELVTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. The use of excessive force by defendants in tackling and throwing plaintiff to the ground was an objectively unreasonable physical seizure of plaintiff in violation of his rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

105. The individually named police officer defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRTEENTH CAUSE OF ACTION

Unlawful Strip Search

106. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 105 with the same force and effect as if more fully set forth at length herein.

107. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

108. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

109. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the United States Constitution and the State of New York.

110. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

JURY DEMAND

111. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Agustin Flores demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
February 6, 2015

By: _____

STUART E. JACOBS, ESQ.
DAVID M. HAZAN, ESQ.
JACOBS & HAZAN, LLP
11 Park Place, 10th Floor
New York, NY 10007

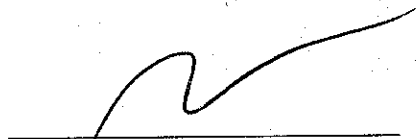
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1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
February 6, 2015



STUART E. JACOBS, ESQ.